

Challenging a Government's Decision

A Simple Guide to Judicial Review in Malaysia

Government departments, enforcement agencies, local authorities and other public bodies may make decisions that affect individuals and businesses. Where such decisions are believed to be unlawful, procedurally unfair or prejudicial to their rights and interests, they may be challenged by way of judicial review.



What Is Judicial Review?

Judicial review is a process through which the High Court examines the lawfulness of a decision, action or failure to act by a public authority.

It is not an ordinary appeal. The Court does not merely decide whether the public authority made the “right” decision. Instead, it considers whether the authority:

- acted within the powers given by law;
- followed the correct procedure;
- acted fairly and without bias;
- considered the relevant matters; and
- reached a decision that was lawful and reasonable.

The procedure is principally governed by [Order 53 of the Rules of Court 2012](#) (“ROC 2012”).



Who May Apply for Judicial Review?



Under **Order 53 rule 2(4) of the ROC 2012**, a person who is adversely affected by the decision of a public authority may apply for judicial review.

This generally means that the decision must have a real effect on the person's rights, interests, business or legal position. A mere disagreement with a government policy or decision may not be sufficient.

Common Grounds for Judicial Review

A government decision may potentially be challenged where:

- the authority acted beyond its legal powers;
- the decision was made for an improper purpose;
- relevant considerations were ignored;
- irrelevant considerations were taken into account;
- the affected person was not given a fair opportunity to be heard;
- improper procedures;
- the decision was affected by bias or procedural unfairness; or

- the decision was irrational, unreasonable or contrary to the Federal Constitution.

Whether judicial review is available will always depend on the applicable law and the facts of the case.

As illustrated in the case of **Sabah Law Society v the Government of the Federation of Malaysia & Anor [2023] 10 CLJ 121** held that a judicial review application revolving around a public interest litigation must fulfil two criteria:-

- (i) **The litigation is not brought by the applicant to seek a remedy to redress a personal injury or wrong; and**
- (ii) **The litigation is brought to address a breach of a public duty for and on behalf of a section of the public who, because of their want of resources, would not be in a position to seek redress, and for which the public interest litigation will redress an injustice perpetuated against the public.**

A Recent Practical Example

Recently, Messrs Shankar Govinth obtained leave from the High Court to commence judicial review proceedings against a public authority concerning the freezing and continued restriction of several bank accounts. The applicants alleged that the accounts appeared to have been frozen before the principal account holder was questioned, while another affected account holder had never been contacted or investigated. They were also allegedly not informed of the suspected offence or the basis for the freezing, were not served with the freezing orders or their extensions, and received no substantive response despite repeated requests for clarification. These circumstances raised an arguable case of bad faith, illegality and procedural unfairness, which the Court permitted to proceed to a substantive hearing.

What Is the Procedure for application of Judicial Review?

1. Act promptly



Pursuant to **Order 53 rule 3 (6) of the ROC 2012**, an application must be filed promptly and, in any event, within three months from the date the grounds first arose or the decision was first communicated to the applicant.

Order

The three-month period should not be treated as permission to delay. Legal advice should be obtained as soon as possible. Nevertheless, pursuant to **53 rule 3(7) of the ROC 2012**, the court may on application, extend the time if it considers that there is good reason for doing so. As illustrated in the case of **Azrul Shah bin**

Mohamad Amir v Lembaga Tatatertib Polis Diraja Malaysia & Ors [2023] MLJU 1639 where it was held that the applicant had failed to provide sufficient material for the court to exercise its discretion to grant an extension of time.

2. Apply for leave

Judicial review generally begins with an application for leave under **Order 53 rule 3 of the ROC 2012**.



The applicant must ordinarily file:

- **Order 53 rule 2(1) of the ROC 2012** - an application in Form 109;
- **Order 53 rule 3(2) of the ROC 2012** - a statement identifying the relief sought and the grounds relied upon; and
- **Order 53 rule 3(2) of the ROC 2012** - an affidavit verifying the relevant facts and exhibiting the supporting documents.

Order 53 rule 3 (3) of the ROC 2012 - Notice of the leave application must also be given to the Attorney General's Chambers no later than three days before the hearing.

At this stage, the Court considers whether there is an arguable case that should proceed to a full hearing.

The granting of leave is not a final decision that the public authority acted unlawfully. It only permits the applicant to proceed with the substantive judicial review application.

3. File the substantive application

If leave is granted, the applicant must file a notice in Form 110 within 14 days from the date leave is granted as pursuant to **Order 53 rule 4 of the ROC 2012**.

The sealed Form 110, statement and supporting affidavits must then be served on all persons directly affected by the application no later than 14 days before the substantive hearing.

4. Attend the substantive hearing

The respondents may file affidavits and written submissions opposing the application. At the substantive hearing, the Court will consider the evidence and determine whether the challenged decision or action was lawful.

Does Filing Judicial Review Stop the Decision?

No. The filing of an application, or even the granting of leave, does not automatically suspend the government decision.

Under **Order 53 rule 3(5) of the ROC 2012**, leave will only operate as a stay if the Court expressly directs it. Where urgent protection is required, the applicant may need to apply separately for a stay or other interim relief.

What Orders May the Court Grant?

Depending on the circumstances, the Court may grant remedies including:

- **Certiorari** – to quash an unlawful decision;
- **Mandamus** – to compel a public authority to perform a legal duty;
- **Prohibition** – to prevent an unlawful act or process from continuing;
- **Declaration** – to determine the legal rights or position of the parties; or
- other appropriate interim or consequential relief permitted by law.

These remedies are discretionary and are not granted automatically merely because an application has been filed.

Can an Applicant Be Compensated for the Loss Suffered?

A successful judicial review does not automatically entitle the applicant to compensation. Under **Order 53 rule 5 of the ROC 2012**, the Court may award damages only if the applicant specifically included a claim for damages in the statement supporting the leave application and could have recovered those damages in an ordinary civil action. The applicant must therefore establish the legal basis for the claim and provide evidence proving the actual loss suffered. Depending on the circumstances, this may include financial records, contracts, receipts or other documents showing that the loss resulted from the unlawful decision.

Conclusion

Judicial review is an important safeguard against the unlawful exercise of public power. However, it is a specialised procedure governed by strict timelines and filing requirements.



The three key points to remember are:

1. **Judicial review examines the legality of a decision**—not merely whether the decision was correct.
2. **The application must be made promptly and generally within three months.**
3. **Obtaining leave allows the case to proceed, but it does not mean that the applicant has already succeeded.**

References

1. Rules of Court 2012
2. Sabah Law Society v the Government of the Federation of Malaysia & Anor [2023] 10 CLJ 121
3. Azrul Shah bin Mohamad Amir v Lembaga Tatatertib Polis Diraja Malaysia & Ors [2023] MLJU 1639

Disclaimer: This article provides general information on Malaysian law and does not constitute legal advice. The availability of judicial review and the appropriate procedure will depend on the facts and applicable legislation in each case.